

Durgesh Nandan @ Durgesh Sharma vs State Of U.P. And Anr. on 29 July, 2019

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 73

Case :- APPLICATION U/S 482 No. - 13177 of 2016

Applicant :- Durgesh Nandan @ Durgesh Sharma

Opposite Party :- State Of U.P. And Anr.

Counsel for Applicant :- Siddhartha Srivastava

Counsel for Opposite Party :- G.A., Shyam Singh

Hon'ble Om Prakash-VII, J.

Matter was taken up. Applicant Durgesh Nandan @ Durgesh Sharma and opposite party no. 2 Smt. Renu both are present in person and were identified by their respective counsel.

Heard Shri Siddhartha Srivastava, learned counsel for the applicant and Shri Shyam Singh, learned counsel for the opposite party no. 2 as well as learned AGA for the state.

This application under Section 482 Cr.P.C. has been filed with the prayer to quash the proceeding of Case No. 537 of 2016 (State Vs. Durgesh Sharma and others) arising out of Case Crime No. 346 of 2015 and summoning order dated 01.04.2016, under Sections 498-A, 323, 504, 506, 406 IPC and Section 3/4 D.P. Act, Police Station Mahila Thana, Lohia Nagar, District Ghaziabad, pending in the court of Additional Chief Judicial Magistrate-VIII, Ghaziabad in terms of compromise.

In compliance of the settlement entered into between the parties, opposite party no. 2 has received Rs. 4 lakhs amount at the time of withdrawal of petition under Section 125 Cr.P.C. and remaining amount of Rs. 7 lakhs will be received by the opposite party no. 2 in the proceeding under Section 13-B Hindu Marriage Act at the time of passing final order. Today one Demand Draft i.e. "No.

000525" amounting Rs. 4 lakhs in the name of opposite party no. 2 Smt. Renu was handed over by the applicant to the opposite party no. 2. On query made by the Court opposite party no. 2 also states that proceeding of the aforesaid case be quashed as she has received the amount agreed between the parties at this stage.

It is also submitted by learned counsel for the applicant that since dispute between the parties have been settled amicably out of court. Payment entered into between the parties at this stage have been received by opposite party no. 2. Remaining amount i.e. Rs. 7 lakhs shall be paid to the opposite party no. 2 at the time of final disposal of petition under Section 13-B Hindu Marriage Act, no fruitful purpose would serve by permitting to continue the proceeding of the aforesaid case to its logical conclusion. At this stage, learned counsel further submitted that continuation of the proceedings of the aforesaid case will be an abuse of process of law. In support of his contention, learned counsel for the applicant has also placed reliance on the law laid down by Apex Court in *Gian Singh vs. State of Punjab*, (2012), 10 SCC 303, *B.S. Joshi and others vs. State of Haryana and another*, (2003) 4 SCC 675 and *Madan Mohan Abbot vs. State of Punjab*, (2008) 4 SCC 582.

On the other hand, learned counsel for the opposite party no.2 submits that since the dispute between the parties has been settled, opposite party no.2 has no objection if the proceedings of the aforesaid case pending before the trial court is quashed.

I have considered the submissions made by the learned counsel for the parties and have gone through the entire record.

In all the aforesaid cases, the Apex Court has laid down the law that criminal proceedings may be quashed even in non-compoundable cases by the High Court in exercise of its extraordinary jurisdiction to restore peace between the parties and in case the justice so demands. According to Hon'ble Supreme Court, if the offence involve private dispute between the parties of commercial nature or matrimonial dispute and it is not related to heinous offence, the proceedings may be quashed.

Since the dispute between the parties has been amicably and mutually settled, no fruitful purpose would be served by permitting to continue the criminal case pending before the trial court and it would simply be a waste of time if the aforesaid case is permitted to continue till its logical conclusion.

In view of the above, the Application u/s 482 Cr.P.C. is allowed.

The entire proceedings of Case No. 537 of 2016 (State Vs. Durgesh Sharma and others) arising out of Case Crime No. 346 of 2015 and summoning order dated 01.04.2016, under Sections 498-A, 323, 504, 506, 406 IPC and Section 3/4 D.P. Act, Police Station Mahila Thana, Lohia Nagar, District Ghaziabad, pending in the court of Additional Chief Judicial Magistrate-VIII, Ghaziabad against the applicant are quashed in terms of compromise arrived at between the parties.

Order Date :- 29.7.2019 Sanjeet